

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
NISIM MUSHIEV, as Executor of the Estate of BEHOR
MUSHIEV, and NISIM MUSHIEV, Individually,

SUMMONS

Plaintiff designates
KINGS County as the
place of trial

Plaintiff,
-against-

CITY OF NEW YORK, and POLICE OFFICERS JOHN
DOE I - X, names being fictitious and meant to designate
offending officers, presently unknowable by Plaintiff, all
Individually and in their official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 8, 2024



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NISIM MUSHIEV, as Executor of the Estate of BEHOR
MUSHIEV, and NISIM MUSHIEV, Individually,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, and POLICE OFFICERS JOHN
DOE I - X, names being fictitious and meant to designate
offending officers, presently unknowable by Plaintiff, all
Individually and in their official capacities,

Defendants.

-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. At the time of his death on April 12, 2023, and at all times hereinafter mentioned, plaintiff decedent BEHOR MUSHIEV was a resident of the County of Kings, City and State of New York.
2. That NISIM MUSHIEV was the son of BEHOR MUSHIEV and a resident of the County of Queens, City and State of New York.
3. That NISIM MUSHIEV was appointed Executor of the Estate of the BEHOR MUSHIEV, decedent, by virtue of Letters Testamentary issued on January 11, 2024 by the Surrogate's Court of Kings County.

4. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
5. That the CITY OF NEW YORK maintains a Police Department known as the New York City Police Department.
6. That on April 5, 2024, within the time proscribed by law, plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.
7. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

8. That the causes of action alleged herein arose in the County of Kings, City and State of New York.

9. That on June 4, 2024 the CITY OF NEW YORK, by it's counsel, did Notice and Demand of Plaintiff to appear and testify at a General Municipal Law §50h hearing on July 11, 2024.

10. That the decedent BEHOR MUSHIEV died on April 12, 2023.

11. That July 11, 2024 is more that one year and ninety days after the death of the decedent.

12. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

13. That on and about April 12, 2023, and on certain dates prior thereto and on all dates hereinafter mentioned, POLICE OFFICERS JOHN DOE I - X, whose names are presently unknowable to Plaintiff but necessarily know to Defendants by virtue of the events complained of herein, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT

14. That on and about April 12, 2023 at approximately 7 A.M., POLICE OFFICERS JOHN DOE I - X were working and acting within the scope of their employment as a Police and Officer[s], and under the color of law.

15. That on all dates herein mentioned, POLICE OFFICERS JOHN DOE I - X were working and acting within the scope of their employment as a Police and Officer[s], and under the color of law.

16. That on on April 12, 2023, the decedent BEHOR MUSHIEV resided at 1783 81st Street, Apartment D10, Brooklyn, New York.

17. That on April 12, 2023 Lennur Mamutov resided at 1783 81st Street, Apartment D10, Brooklyn, New York as the roommate of BEHOR MUSHIEV.

18. That on certain dates prior to April 12, 2023 the decedent BEHOR MUSHIEV complained to the CITY OF NEW YORK, including to certain Officers of the New York City Police Department, that his roommate Lennur Mamutov was dangerous and a threat to BEHOR MUSHIEV's safety and wellbeing.

19. That Officers of the New York City Police Department ignored or refused to heed BEHOR MUSHIEV's pleas, and neglected or refused to arrest Lennur Mamutov or take any action thereby.

20. Nevertheless, prior to April 12, 2023, the CITY OF NEW YORK, including certain Officers of the New York City Police Department and/or other CITY OF NEW YORK employees, agents or servants, were on notice of the threat that Lennur Mamutov presented to BEHOR MUSHIEV.

21. That prior to April 12, 2023, fearing for his safety and well being, and having no respite from the CITY OF NEW YORK or it's Officers at the New York City Police Department, the decedent BEHOR MUSHIEV changed the locks on his apartment door to safeguard his wellbeing and prevent Lennur Mamutov from entering the apartment.
22. That in the early morning hours of April 12, 2023, Lennur Mamutov, being unable to gain access to BEHOR MUSHIEV and the apartment he resided in, complained to Officers at the New York City Police Department that he was being denied entry into the apartment.
23. That in the early morning hours of April 12, 2023 Officers at the New York City Police Department accompanied Lennur Mamutov to 1783 81st Street, Apartment D10, Brooklyn, New York.
24. That in the early morning hours of April 12, 2023 Officers at the New York City Police Department directed, forced and coerced the decedent BEHOR MUSHIEV to accept and give entry to Lennur Mamutov at 1783 81st Street, Apartment D10, Brooklyn, New York.
25. That the decedent BEHOR MUSHIEV protested the directing of Lennur Mamutov into 1783 81st Street, Apartment D10, Brooklyn, New York, but was forced

and coerced by Officers at the New York City Police Department to allow the entry of Lennur Mamutov into said apartment.

26. That immediately after forcing Lennur Mamutov into 1783 81st Street, Apartment D10, Brooklyn, New York, the Officers at the New York City Police Department departed.

27. That immediately after the forcing of Lennur Mamutov into 1783 81st Street, Apartment D10, Brooklyn, New York, Lennur Mamutov started assaulting the decedent BEHOR MUSHIEV.

28. That shortly after Lennur Manutov began assaulting the decedent in the early morning hours of April 12, 2023, starting shortly after 2 AM, certain residents of 1783 81st Street, Brooklyn, New York began calling the CITY OF NEW YORK and the New York City Police Department, warning of the assaults continuing in Apartment D10.

29. That CITY OF NEW YORK and the New York City Police Department failed to heed the aforesaid warnings of the residents of 1783 81st Street, Brooklyn, New York.

30. That at approximately 7:20 AM on April 12, 2023 another urgent call was made to CITY OF NEW YORK and the New York City Police Department through the 911 system regarding the ongoing assault of the decedent BEHOR MUSHIEV by Lennur Manutov at 1783 81st Street, Apartment D10, Brooklyn, New York.

31. That at approximately 8 AM on April 12, 2023 Officers of the New York City Police Department arrived at 783 81st Street, Apartment D10, Brooklyn, New York to find BEHOR MUSHIEV beaten, stabbed, assaulted and in dire need of medical attention.
32. That at approximately 8:05 AM on April 12, 2023 Officers of the New York City Police Department summoned emergency medical assistance in the form of a request for an ambulance and emergency medical technicians.
33. That the actions and inactions and/or omissions of POLICE OFFICERS JOHN DOE I - X were performed within the scope of their authority, duties and employment with the CITY OF NEW YORK, which were performed in a negligent, careless, reckless and wonton manner resulting in the injuries and damages alleged herein.
34. That at approximately 8:20 AM on April 12, 2023 the Emergency Medical Technicians had first contact with BEHOR MUSHIEV.
35. That shortly after 8:20 AM on April 12, 2023 BEHOR MUSHIEV was pronounced dead.
36. By reason of the forgoing, the decedent plaintiff BEHOR MUSHIEV was caused to suffer severe physical injuries and pain and suffering including pre-death pain and

suffering, emotional and psychological distress and horror as a result of the negligence, carelessness and recklessness alleged herein.

37. That on April 12, 2023 Lennur Manutov was arrested by Officers of the New York City Police Department.

38. That on April 12, 2023 Lennur Manutov was arrested by Officers of the New York City Police Department for the murder of BEHOR MUSHIEV.

AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL DEATH ON
BEHALF OF NISIM MUSHIEV, AS EXECUTOR
OF THE ESTATE OF BEHOR MUSHIEV

39. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

40. That on April 12, 2023 plaintiff decedent BEHOR MUSHIEV was lawfully present at 1783 81st Street, Apartment D10, Brooklyn, New York.

41. That on April 12, 2023, POLICE OFFICERS JOHN DOE I - X took positive control of a known and dangerous safety condition by requiring, demanding, compelling and necessitating the entry of Lennur Manutov into the premises 1783 81st Street, Apartment D10, Brooklyn, New York.

42. That on April 12, 2023, POLICE OFFICERS JOHN DOE I - X voluntarily assumed a duty to plaintiff decedent BEHOR MUSHIEV by requiring, demanding, compelling and necessitating BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York despite knowledge that it could lead to harm.

43. That BEHOR MUSHIEV justifiably relied upon said duty voluntarily assumed by POLICE OFFICERS JOHN DOE I - X.

44. That BEHOR MUSHIEV justifiably relied upon said duty voluntarily assumed by POLICE OFFICERS JOHN DOE I - X by virtue of and after the direct contact between said officers and himself.

45. That as a result of POLICE OFFICERS JOHN DOE I - X taking positive control of a known and dangerous safety condition by requiring, demanding, compelling and necessitating the entry of Lennur Manutov into the premises 1783 81st Street, Apartment D10, Brooklyn, New York, Lennur Manutov assaulted, battered and stabbed BEHOR MUSHIEV resulting in the death of BEHOR MUSHIEV.

46. That as a result of POLICE OFFICERS JOHN DOE I - X voluntarily assuming a duty to plaintiff decedent BEHOR MUSHIEV by requiring, demanding, compelling and necessitating BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York, upon which BEHOR MUSHIEV justifiably relied

after the direct contact between said officers and BEHOR MUSHIEV, Lennur Manutov assaulted, battered and stabbed BEHOR MUSHIEV resulting in the death of BEHOR MUSHIEV.

47. Therefore and as result thereof, the CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X had a duty born of a special relationship between plaintiff decedent BEHOR MUSHIEV and the CITY OF NEW YORK and that duty was breached.

48. That at all times herein mentioned, POLICE OFFICERS JOHN DOE I - X engaged in acts and omissions in their official capacity as New York City Police Officers and under the color and authority of State law, regulation, ordinance, custom and usage.

49. That the aforementioned wrongful death of decedent plaintiff BEHOR MUSHIEV was caused to the the actions, omissions, negligence, carelessness and wonton recklessness of POLICE OFFICERS JOHN DOE I - X and as more fully described herein.

50. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment for the assault and battery with a deadly weapon against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X that resulted in the plaintiff decedent's wrongful death,

including the resultant pecuniary loss, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE AND PAIN
AND SUFFERING RESULTING IN DEATH ON BEHALF OF NISIM MUSHIEV, AS
EXECUTOR OF THE ESTATE OF BEHOR MUSHIEV**

51. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 50 as though more fully set forth herein.

52. That said incident and the injuries and damages resulting therefrom were caused solely by the negligence, carelessness and wanton recklessness of the defendant CITY OF NEW YORK through its agents, servants and employees and the involved police officers, including but not limited to POLICE OFFICERS JOHN DOE I - X, as of yet unidentified and unidentifiable by plaintiff, both directly and vicariously and through the breach of the duty born of a special relationship between plaintiff decedent BEHOR MUSHIEV and the CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X.

53. That duty born of a special relationship between plaintiff decedent BEHOR MUSHIEV and the CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X was breached when POLICE OFFICERS JOHN DOE I - X took positive control of a known and dangerous safety condition, to wit, requiring, demanding, compelling and

necessitating BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York, which resulted in Lennur Manutov assaulting, battering and stabbing the plaintiff decedent BEHOR MUSHIEV.

54. That duty born of a special relationship between plaintiff decedent BEHOR MUSHIEV and the CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X was breached when POLICE OFFICERS JOHN DOE I - X voluntarily assumed duties to plaintiff decedent BEHOR MUSHIEV, upon which duties BEHOR MUSHIEV justifiably relied after the direct contact between said officers and BEHOR MUSHIEV, which resulted in Lennur Manutov assaulting, battering and stabbing the plaintiff decedent BEHOR MUSHIEV.

55. That immediately after POLICE OFFICERS JOHN DOE I - X required, demanded, compelled and necessitated BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York, said officers left the premises.

56. Immediately after POLICE OFFICERS JOHN DOE I - X required, demanded, compelled and necessitated BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York, and left the premises, Lennur Manutov began assaulting BEHOR MUSHIEV.

57. Shortly thereafter, and beginning at approximately 2:30 AM on April 12, 2023, other residents of 1783 81st Street, Brooklyn, New York urgently began calling 911 seeking police assistance due to the assaults and dispute taking place in Apartment D10.

58. POLICE OFFICERS JOHN DOE I - X, despite the special relationship established as aforesaid, refused or neglected to return to 1783 81st Street, Apartment D10, Brooklyn, New York until a final call was made at approximately 7:20 AM.

59. Despite the urgent nature of the prior calls and the final call made at approximately 7:20 AM, police officers did not respond to 1783 81st Street, Apartment D10, Brooklyn, New York until approximately 8 AM.

60. From the time that police officers initially left 1783 81st Street, Apartment D10, Brooklyn, New York after placing Lennur Manutov inside the premises, the plaintiff decedent BEHOR MUSHIEV began suffering pain and anguish due to the assaults by Lennur Manutov leading to BEHOR MUSHIEV lying in a pool of his own blood, dying with the fear and terror of his own impending death.

61. By the time POLICE OFFICERS JOHN DOE I - X finally did respond to the dangerous situation they caused and created, it was too late to save the life of BEHOR MUSHIEV, and plaintiff decedent suffered great pain and anguish thereby.

62. The actions, inactions and omissions of POLICE OFFICERS JOHN DOE I - X occurred in a negligent, careless and wantonly reckless manner so as to result in the death of the plaintiff decedent BEHOR MUSHIEV, and by reason of the foregoing, the plaintiff decedent BEHOR MUSHIEV was caused to suffer severe physical injuries and pain and suffering including pre-death pain and suffering, fear of imminent death, emotional and psychological distress and horror as a result.

63. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment for the assault and battery with a deadly weapon committed by Lennur Manutov against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X, including pain and suffering and pre-death terror, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE AND PAIN AND
SUFFERING RESULTING IN DEATH ON BEHALF OF NISIM MUSHIEV, AS
EXECUTOR OF THE ESTATE OF BEHOR MUSHIEV FOR THE FAILURE OF
CERTAIN OFFICERS TO INTERCEDE**

64. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 63 as though more fully set forth herein.

65. That despite knowledge of the dangerous condition and situation they took positive control of and created, despite knowledge of the danger to health and safety that Lennur Manutov presented, despite assuming a special duty that arose by direct contact between the plaintiff decedent BEHOR MUSHIEV and certain officers of the New York City Police Department, upon which BEHOR MUSHIEV justifiably relied, POLICE OFFICERS JOHN DOE I - X failed to intercede to prevent the injuries and damages asserted herein.

66. The actions, inactions and omissions of POLICE OFFICERS JOHN DOE I - X in failing to intercede occurred in a negligent, careless and wantonly reckless manner so as to result in the death of the plaintiff decedent BEHOR MUSHIEV, and by reason of the foregoing, the plaintiff decedent BEHOR MUSHIEV was caused to suffer severe physical injuries and pain and suffering including pre-death pain and suffering, fear of imminent death, emotional and psychological distress and horror as a result.

67. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment for the wrongful death and pain and suffering of plaintiff decedent BEHOR MUSHIEV against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR DEPRIVATION OF FEDERAL
RIGHTS ON BEHALF OF NISIM MUSHIEV, AS EXECUTOR OF THE ESTATE OF
BEHOR MUSHIEV UNDER 42 U.S.C. § 1983**

68. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 67 as though more fully set forth herein.

69. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

70. All of the aforementioned acts deprived plaintiff decedent BEHOR MUSHIEV of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, as asserted through and by virtue of 42 U.S.C. § 1983.

71. The acts complained of were carried out by the aforementioned individual defendants, whose individual identities are presently unknowable by plaintiff but known to THE CITY OF NEW YORK and its officers POLICE OFFICERS JOHN DOE I - X in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality / authority, which is forbidden by the Constitution of the United States.

74. Defendants, collectively and individually, while acting under color of state law, did cause grievous physical and emotional injury and did deprive the decedent plaintiff of his life in violation of the 4th and 14th Amendments of the United States Constitution and so did deny decedent plaintiff without due process or equal protection of the law.

75. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment on behalf of plaintiff decedent BEHOR MUSHIEV and his estate against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE TO INTERCEDE ON
BEHALF OF NISIM MUSHIEV, AS EXECUTOR OF THE ESTATE OF BEHOR
MUSHIEV UNDER 42 U.S.C. §1983**

76. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 75 as though more fully set forth herein.

77. Defendants POLICE OFFICERS JOHN DOE I - X had an affirmative duty, and the opportunity to intercede when plaintiff decedent's constitutional rights were being violated in defendants' POLICE OFFICERS JOHN DOE I - X presence when they required, demanded, compelled and necessitated BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York thereby taking positive control of a known and dangerous safety condition.

78. Defendants POLICE OFFICERS JOHN DOE I - X had an affirmative duty, and the opportunity to intercede when plaintiff's constitutional rights were being violated in defendants' POLICE OFFICERS JOHN DOE I - X presence when they required, demanded, compelled and necessitated BEHOR MUSHIEV to accept Lennur Manutov into 1783 81st Street, Apartment D10, Brooklyn, New York thereby voluntarily assuming a duty to plaintiff decedent BEHOR MUSHIEV despite knowledge that it could lead to harm when BEHOR MUSHIEV justifiably relied upon said duty voluntarily assumed by POLICE OFFICERS JOHN DOE I - X by virtue of and after the direct contact between said officers and BEHOR MUSHIEV.

79. Defendants POLICE OFFICERS JOHN DOE I - X further violated plaintiff decedent's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff decedent's constitutional rights and the injuries or further injuries caused as a result of said failure.

80. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment on behalf of plaintiff decedent BEHOR MUSHIEV and his estate against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY ON
BEHALF OF NISIM MUSHIEV, AS EXECUTOR OF THE ESTATE OF BEHOR
MUSHIEV UNDER 42 U.S.C. §1983**

81. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 80 as though more fully set forth herein.

82. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality / authority, which is forbidden by the Constitution of the United States.

83. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. Failing to timely respond to an emergency situation that was of their own making after a special duty has been created and /or established;
- B. Fabricating or withholding evidence in connection with their violation of a duty created by a special relationship;
- C. Taking positive control of a known and dangerous safety condition in allowing, demanding and requiring individuals to accept into their homes other persons known to be dangerous to their health and safety;
- D. Voluntarily assuming duties after direct contact with individuals knowing that said individuals would reasonably rely upon the same;
- E. Failing to intercede to prevent a violation of plaintiff decedent's constitutional rights;
- F. Failing to take reasonable steps to control and /or discipline police officers who lie, fabricate evidence, and /or commit perjury in order to cover up police misconduct.

84. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff decedent.

85. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff decedent as alleged herein.

86. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff decedent as alleged herein.

87. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff decedent's constitutional rights.

88. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff decedents' constitutional rights.

89. The acts complained of deprived the plaintiff decedent of rights: Not to be deprived of life without due process of law and to receive equal protection under the law.

90. That by reason of the foregoing, the Plaintiff NISIM MUSHIEV, as Executor of the Estate of BEHOR MUSHIEV, demands judgment on behalf of plaintiff decedent BEHOR MUSHIEV and his estate against the defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN DOE I - X, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING AND RETENTION ON BEHALF OF NISIM MUSHIEV, AS EXECUTOR
OF THE ESTATE OF BEHOR MUSHIEV**

91. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 90 as though more fully set forth herein.

92. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

93. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in proper and lawful police practices.

94. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence and conduct detailed herein, plaintiff decedent was subjected to a vicious assault and battery and gruesome death, denied of his rights and life under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering and pecuniary loss; that the plaintiff sustained injuries, both internal and external, all of which, caused his suffering and death; that it was necessary to incur funeral expenses and that plaintiff decedent was prevented from attending his usual vocation and avocations and suffered pecuniary loss; all to the plaintiff decedent's estate damage in sums which exceed the jurisdiction of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action, and inclusive of punitive damages as applicable to the individuals named and unnamed, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 8, 2024



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

NISIM MUSHIEV, as Executor of
the Estate of BEHOR MUSHIEV

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
NYC Law Dept.
New York, New York 10007

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury pursuant to CPLR 2106:

I am the attorney of record for Plaintiff,

NISIM MUSHIEV, as Executor of
the Estate of BEHOR MUSHIEV

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains his office.

DATED: Bronx, N.Y.

July 8, 2024



JONATHAN L. GLEIT, ESQ